

AN INDEPENDENT REVIEW OF PUBLICLY AVAILABLE RECORDS

What the Rulebook Says

Acts, Bylaws and Board of Governors Manuals of the National Speleological Society,
1998–2026

Presented by Aaron Bird

NSS Fellow · NSS #27029

Records collected 22–24 Sep 2026, re-checked 30 Sep 2026 (UTC) · Facts as of 30 September 2026



Not an official NSS presentation. Every fact comes from pages reachable without any login. The bars show each public copy of the Manual; red marks the years with none.

Three ground rules

1

Public only

Every document was retrieved from a public web address with no login, no account and no cookies. Member-only material (for example NSS News) is excluded. Where it might hold an answer, the slide says so.

2

Descriptive

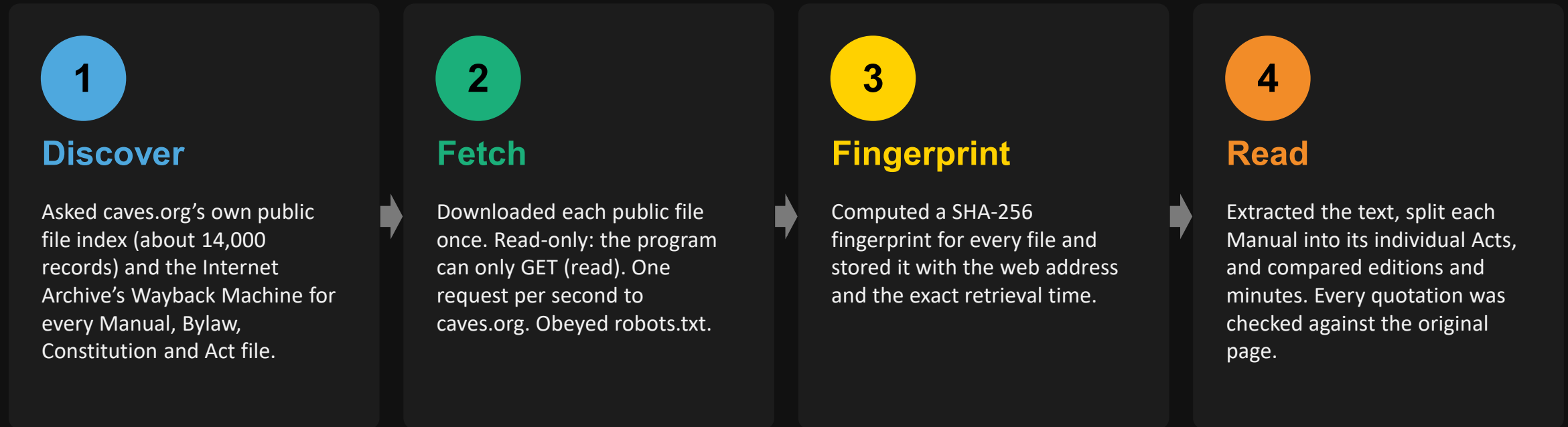
The talk reports what the records say and what they do not say. It does not assign motives. Where a record is a draft, it is labelled as a draft.

3

Traceable

Each slide carries its source. Speaker notes and the appendix give full web links. Every file has a SHA-256 fingerprint and a retrieval time in a manifest.

How the investigation worked



Collection	Date collected (UTC)
Minutes, agendas, officer reports	22 Sep 2026
Acts, Bylaws, Board Manuals · public financial records · IRS data	23 Sep 2026
Executive Director role documents	24 Sep 2026
Governance re-check (anything posted or changed since 23 Sep) — nothing new found	30 Sep 2026

Four documents, one hierarchy

Constitution

Nine articles. Amended only by a two-thirds vote of member ballots returned (Art. VIII).

Bylaws

How the Society is governed. Amended by the Board (two-thirds) or by the membership (Art. XIV).

Acts of the Board

Every policy decision of the Board, numbered by section (for example 15-573). Longer Acts are stored as appendices.

Board of Governors Manual

The compilation of all of the above, kept by the Secretary to the Board. It is not itself adopted by vote.

The minutes are the primary record

Act 05-771: approved minutes carry the Act number of each motion passed.

Manual Introduction: every change carries the date and minutes item that adopted it (for example 03-25-06:24d). Until 2024 this was Act 05-773.

Act 05-774: “After meeting minutes are approved,” the Manual is updated.

The Constitution

The founding document: what the Society is, who governs it, and how the Constitution itself may change. Nine short articles, in force since 1 January 1941.

Art.	What it says
I	Name: the National Speleological Society
II	Purpose: speleology, protection of caves, fellowship
III	Government by a Board of Governors with “full power”, including to adopt the Bylaws and “appoint Executive Director”
IV	Life of the Society: perpetual, unless ended by member vote
V	Membership open to anyone interested in speleology
VI–VII	Charter members and first Board (1941)
VIII	Amendment: proposed by the Board or a 5% member petition; adopted by two-thirds of member ballots returned
IX	Effective 1 January 1941

Who can change it

Only the members. The Board may propose; the members decide by mail ballot, two-thirds of ballots returned within 90 days (Art. VIII).

Amendment record printed in the Manual

“Amended: June 1972 · Article IX: 07/14/14:4”

The same two entries appear in the 2023, 2024 and 2026 editions, although Article III changed from “appoint officers” to “appoint Executive Director” in July 2024 (next slide).

Above it

The 1941 Articles of Incorporation (District of Columbia, Certificate No. 26672), printed just before the Constitution.

Article III: new wording, and the authority for it

June 2023 Manual, Article III (p10)

III. The government of this Society shall be by a Board of Governors which shall have full power to conduct and supervise all business of the Society, draft and adopt the Bylaws of the Society, make changes therein, appoint officers for the Society, and perform all other functions incident to the proper conduct of the Society.

Wayback: https://caves.org/wp-content/uploads/p/businessdocuments/Board_of_Governors_Manual.pdf
“appoint officers for the Society”

July 2024 Manual, Article III (p6) — the same in every edition since

III. The government of this Society shall be by a Board of Governors which shall have full power to conduct and supervise all business of the Society, draft and adopt the Bylaws of the Society, make changes therein, appoint Executive Director for the Society, and perform all other functions incident to the proper conduct of the Society.

caves.org/wp-content/uploads/2024/07/Board-of-Governors-Manual-2024-7-1_0.0.pdf

“appoint Executive Director for the Society”

Possible authority for the change	What the public record shows
A member ballot — Art. VIII: two-thirds of ballots returned within 90 days	None found. “Constitution” appears in no public minutes or agenda from June 2023 to July 2026, except inside the text of a fund Act
The adopting motion, 10 Mar 2024 (Act 01-994)	It amends “bylaws and acts (including appendices)”. The 144-page proposal has no Constitution section
The floor amendment’s “clerical changes”	“president” → “Executive Director”, in three re-inserted Acts only (18-640, 18-747, 18-986)
Bylaws Art. XIV (amendment by the Board)	Covers the Bylaws, not the Constitution
The Manual’s own amendment record	Unchanged: “June 1972 · Article IX: 07/14/14:4”. No entry for Article III

Most recent Board Manual (“As of the July 06, 2026 meeting”), Constitution on p6:
caves.org/wp-content/uploads/2026/09/Board-of-Governors-Manual-2026-07-06.pdf#page=6

Question The Manual prints new wording for Article III, and the public record shows neither a member ballot nor any other authority for the change. Was this change made in accordance with the Constitution of the National Speleological Society?

The Bylaws

The rules for running the Society: membership, the Board, the Executive Director, committees, conventions, property, discipline. Written and changed mostly by the Board, within the Constitution.

I Mission statement

IX Internal organizations

II Membership – dues

X Properties and finance

III Awards – grants

XI Publications

IV Assessments

XII Library

V Board of Governors

XIII Discipline of members

VI Executive Director

XIV Amendment of the Bylaws

VII Divisions, committees, commissions

XV Dissolution

VIII Conventions – Congress of Grottos

Three ways to amend (Art. XIV)

- 1 Unanimous vote at a meeting with three-quarters of the Board present.
- 2 Two-thirds of those present, after written notice one meeting (or one month) ahead.
- 3 Member referendum: 5% petition, two-thirds of ballots returned.

History in the Manual

“Adopted 03-10-24:5.6” (the restructuring), then ten amendments, Sep 2024 – Oct 2025 (next slide).

The Bylaws Committee checks every proposal against the Articles of Incorporation, Alabama law and the Constitution (VII.E.4).

Every Bylaw change since 2024, checked against Article XIV

Manual's note	Minutes: meeting · item	Present	Vote	Route 1?	Public minutes (label on file)
Adopted 03-10-24:5.6	10 Mar 2024 · 5.5 (restructuring)	16 of 17	Roll call 16–0	Yes	Final
VI.6, 7 added 10-30-24:4.6	30 Sep 2024 (special) · 4.6	14 of 14	Roll call 14–0	Yes	Final
V.B.4(c) 02-10-25:6.1	10 Feb 2025 (special) · 6.1	13 of 14	Voice, unanimous	Yes	Draft 1; approved 23 Jun 2025
XII.C 02-10-25:6.3	10 Feb 2025 (special) · 6.3 — XIII.C	13 of 14	Voice, unanimous	Yes	Draft 1; approved 23 Jun 2025
III.F 03-01-25:5.1	1 Mar 2025 · 5.1 (moved 10 Feb)	14 of 14	Voice, unanimous	Yes	Final
X 03-01-25:6.10	1 Mar 2025 · 6.10	14 of 14	Voice, unanimous	Yes	Final
VII.E.6 03-01-25:8.1	1 Mar 2025 · 8.1	14 of 14	Voice, unanimous	Yes	Final
V.B.4(c) 05-12-25:6.1	12 May 2025 (special) · 6.1	9 of 13	Voice, unanimous	No	Draft 1; approved 23 Jun 2025
V.D.1 added 06-23-25:6.4	Moved 23 Jun; adopted 27 Jun 2025	12 of 12	Voice, unanimous	Yes	Draft 2; approved 14 Mar 2026 *
III.G 10-04-25:6.1	4 Oct 2025 · 6.1	12 of 12	Voice, unanimous	Yes	Draft 2; approved 14 Mar 2026 *
V.B.4(d) 10-04-25:8.1	4 Oct 2025 · 8.1 (from the floor)	12 of 12	Voice, unanimous	Yes	Draft 2; approved 14 Mar 2026 *

Present counts voting Board members (officers too, in March 2024) and personal proxies. Route 1: a unanimous vote with three-quarters of the Board present. Orange: the Manual's note differs from the minutes. * approval recorded only in draft minutes.

Does the minutes record show where each change was made? Yes. All 11 entries trace to a public minute. Four of the Manual's notes cite the wrong date, item or article.

Does it show compliance with Article XIV? 10 of 11 meet route 1 on the face of the minutes. 12 May 2025 does not (9 of 13; 10 needed). Route 2 needs written notice a meeting or a month ahead: the public agenda with the text was posted 28 days before.

The Acts of the Board

“

Each action approved by the Board of Governors that serves to establish new policies, to revise the governing body, or to establish new administrative procedures will be designated as an “Act.”

Bylaw V.F.2

Reading an Act

15-573 Signature Authority 07-10-26:8.14

15 the section: 15 = Fiscal Matters

573 the sequence: the 573rd Act since the Society began

07-10-26:8.14 the meeting date and minutes item that adopted or amended it

114

Acts in force (Jul 2026)

26

subject sections

14

appendices — longer Acts

3%

member petition forces a referendum (V.F.3)

Which Acts go in the Manual: all except short-lived ones that end before the next meeting, unless the Board orders otherwise (Act 03-484). Appendices are “still full acts in all their power and effect.”

How an Act is approved

Short answer Not exactly “a simple majority of those present.” The Bylaws set no vote threshold for Acts. Robert’s Rules, which the Bylaws adopt, require a majority of the votes cast, with a quorum present. Some decisions need two-thirds or more.

Question	What governs it
Vote needed	No threshold in the Bylaws. V.F.1: Robert’s Rules “governs procedures of the Board of Governors” → a majority of the votes cast; abstentions do not count
Quorum	Until June 2024: “Two thirds of the directors and three officers, all present.” Since July 2024: no quorum clause, so Robert’s default applies, a majority of the Board
Changing or repealing an Act already adopted	Robert’s Rules: two-thirds, or a majority after previous notice, or a majority of the entire Board
Members’ check	A 3% member petition forces a referendum; a majority of ballots returned decides (V.F.3)
Recording	Approved minutes carry each new Act’s number (Act 05-771). Acts that expire before the next meeting stay out of the Manual (Act 03-484)

Higher thresholds written in the Bylaws

2/3 membership classes and dues (II.B–C)

2/3 NSF contracts (X.C, added Mar 2025)

2/3 strategic plan; 3/4 to change it within five years (VII.E.6)

2/3 expel or discipline a member (XIII.B)

2/3 remove a director for missed meetings (V.G.3)

Majority of all board members hire the Executive Director (VI.A.4)

In practice (public minutes 2024–26)

Almost every motion is recorded as “Voice Vote: UNANIMOUS APPROVAL”. Roll calls are used for money and for the restructuring. In July 2026, 58 items were listed as a “Consent Agenda” with one recorded vote.

How it comes together: the Board of Governors Manual

● Introduction	what the Manual is; how to read Act numbers and annotations	p 2
● Articles of Incorporation	DC, 1941	p 5
● Constitution	9 articles — members amend	p 6
● Bylaws	15 articles — Board (or members) amend	p 7–14
● Acts	114 Acts in 26 sections — Board adopts	p 15–33
● Appendices	14 longer Acts (D–BU)	p 34–61
● Organizational chart	maintained by the Executive Director (VII.A.2)	p 62–63

What it is

A compilation of all the above, “all policies governing the operation” of the Board. It is not adopted by vote; each part carries its own authority.

Who keeps it

The Secretary of the Board, reporting to the Chair of the Board.

When it changes

“After meeting minutes are approved” (Act 05-774).

Where it is kept

A current version and post-2024 versions “in the board’s cloud storage”; earlier editions on legacy.caves.org (login). The 2022 edition called itself “not a Society publication.”

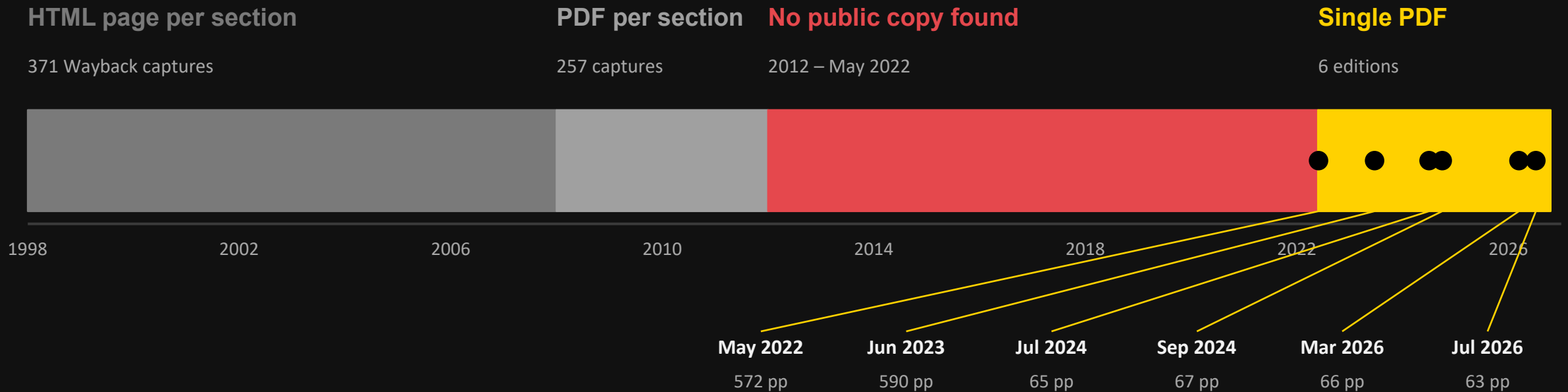
PART 1

The public record of the Manual

Which editions anyone can read today, and which ones are missing.

A large yellow circle containing the number 1.

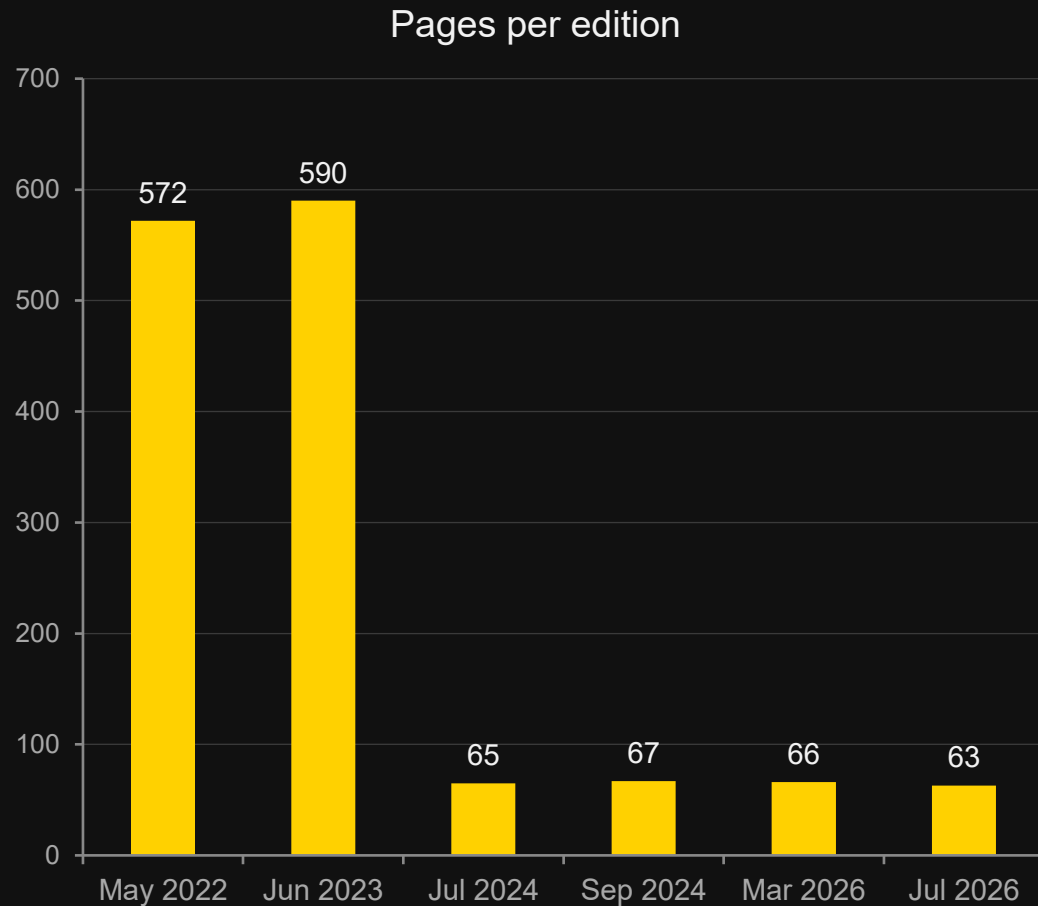
Twenty-eight years of public copies, with a ten-year gap



2022 Introduction: *“The manual pages are updated three times a year, after each Board of Governors meeting.”*

Six editions are public for 2022–2026. Editions between most post-2024 meetings were not found. Earlier editions are linked to legacy.caves.org, which requires a login.

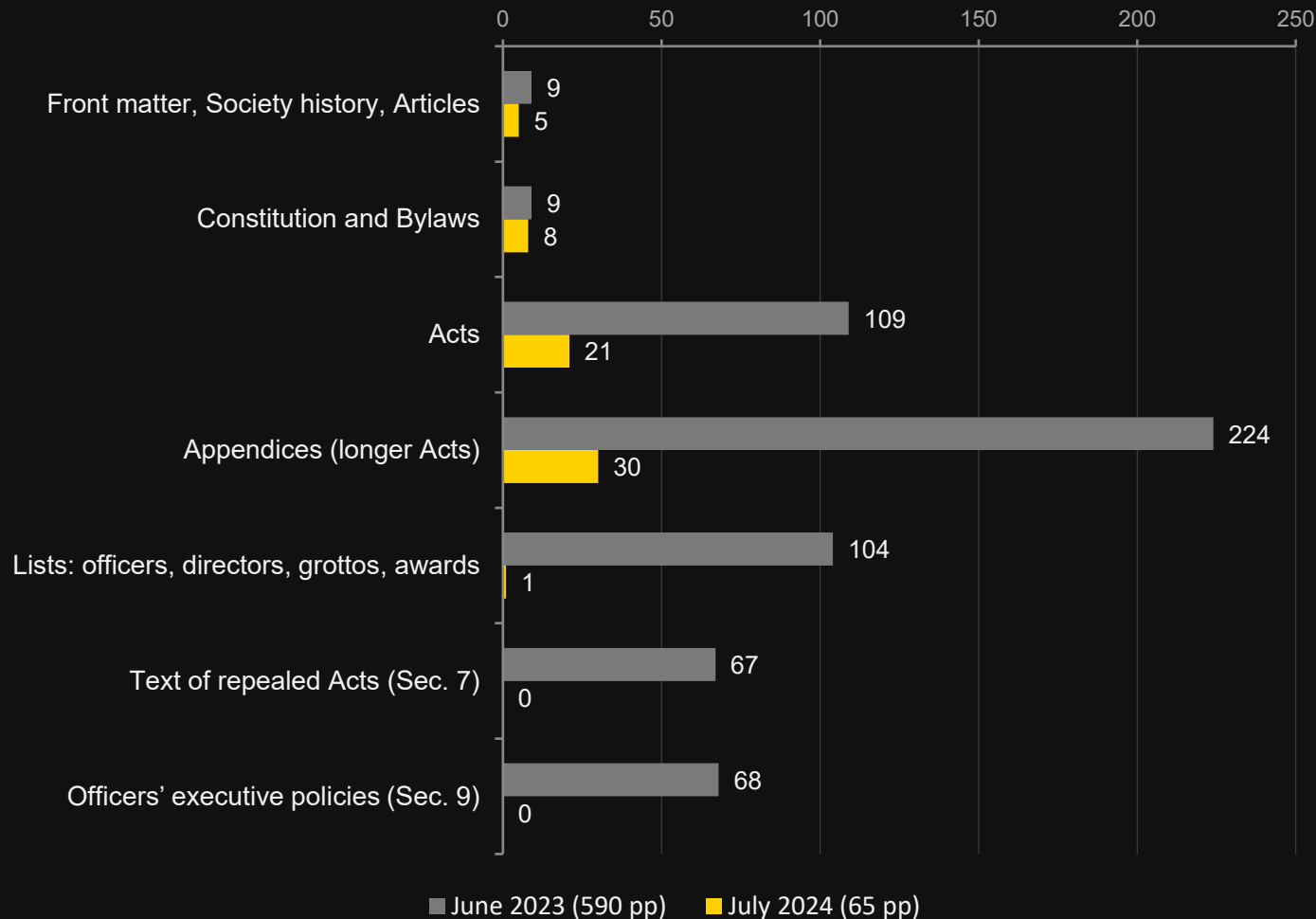
Six editions, two sizes



Edition (title page)	Where it can be read
As of 30 May 2022	live — uploads/2022/06/
As of 20 June 2023	Internet Archive only (19 Oct 2023)
As of July 1st, 2024	live — uploads/2024/07/
As of the Sept 30, 2024 meeting	Internet Archive only (16 Sep 2025)
As of the March 14, 2026 meeting	live — p/businessdocuments/ (file replaced in place)
As of the July 06, 2026 meeting	live — uploads/2026/09/ (posted 12 Sep 2026)

The 2022 edition calls itself “not a Society publication.” The 2024 edition says it “includes all policies.”

Why 590 pages became 65



Where 525 pages went

239 pages were not rules. Lists of past officers, directors, grottos and award winners (104); repealed Acts kept “for reference only” (67); and officers’ policies that “do not carry the weight of Board approval” (68). None of these sections is in the 2024 edition.

282 pages were Acts and appendices. 330 of 458 Acts and 48 of 63 appendices are gone. The next slide shows how each Act was marked.

The Constitution and Bylaws kept their length (9 → 8 pages); the Bylaws were rewritten.

The 2024 introduction: the Manual “includes all policies governing the operation” of the Board.

How the restructuring proposal sorted 458 Acts

Still Change

Legal Review

Already Changed or no change

Delete

The proposal’s own legend (p8)

02-948 Director Annual Report

06-17-19:17

The Chair of the <<Board>> >>Directorate will<< deliver<<s>> an annual report (following the template as an example in Appendix [XXX]) aligning with the fiscal year outlining the directors' board level efforts to the membership by May 1 for the purpose of helping the membership make informed voting decisions.

02-949 Director Committee Participation

06-17-19:18

Every director, within 12 months of taking office, is required to be active in an NSS committee(s) throughout their term as a director.

Cross Reference Bylaw IV
Act Section 06 Ballots
Appendix X Policy for Conduct of NSS Elections

ACT SECTION 03 --- MEETINGS

03-141 Expenses

03-23-85, 04-20-68, 10-21-67, 10-28-61

Directors and Officers shall continue to attend all meetings of the Board of Governors at their own expense. Members of Society committees shall continue to attend Board Meetings, Conventions, and committee meetings at their own expense without reimbursement.

Proposal p12: 02-948 kept and edited (green); 03-141 deleted (grey)

caves.org/wp-content/uploads/2024/02/NSS-Restructuring-Proposal_2024-2-7.pdf

Source: NSS Restructuring Proposal_2024-2-7 p12 (crop) and p8 legend; analysis/out/restructuring_proposal_acts.csv (restructuring_proposal_colors.py: highlight colour behind each Act header); acts_by_edition.csv; May 2024 President’s Column (Wayback 17 Jul 2024)

Mark on the Act (June 2023 Acts)	Acts	In the July 2024 Manual
Grey: “Delete”	313	310 gone · 3 kept (18-640 and 18-747 put back by the floor amendment; 04-093)
Green: “Already Changed or no change”	126	122 kept · 4 not under the same number (e.g. 72-352 → 28-352)
Yellow: “Legal Review”	3	2 kept · 01-504 renumbered 02-504
Red: “Still Change”	0	—
Not in the proposal	16	15 gone · 18-986 put back by the floor amendment
Total	458	128 kept · 330 gone · plus 6 new numbers = 134

“

We also realized that we would have to modify our entire BOG manual to handle the new operational structure... we dedicated the entire BOG meeting last convention to review every single act and bylaw for this major overhaul.

Kristine Ebrey, May 2024 President’s Column

PART 2

The 2024 restructuring

From five officers and twelve directors to a board of directors and a paid Executive Director.

A large yellow circle containing the number 2.

Adopted 10 March 2024, effective 1 July 2024

“

Stephen Gladieux moves to accept the restructuring proposal referred to the Board from the Bylaws committee thus amending bylaws and acts (including appendices) as shown in the attached proposal titled “NSS Restructuring Proposal_2024-2-7”.

Minutes of 10 March 2024, item 5.5 — “New Act 01-994”

Roll Call Vote:**16 Aye; 0 Nay; 1 Absent**

Roll call on the motion as amended (same page)

caves.org/wp-content/uploads/p/boardminutes/2403BOG.pdf

16

Aye

0

Nay

1 July 2024

Effective date, set by amendment (Davis seconding, unanimous)

The amendment also re-inserted Acts 18-640, 18-747 and 18-986, removed 63-423 and 28-419, and created an ad hoc Executive Director search committee.

The reasons given at the time, in the words used

“

The NSS will not sink because of bankruptcy, the NSS will sink because of the loss of volunteers to run the operations and organization.

Kristine Ebrey, NSS President — May 2024 President's Column

“

...the President position along with the other officer positions except for the Secretary-Treasurer, will be retired on July 1, 2024.

same column

“

...having an executive committee and Executive Director would be problematic in operational structure and command.

same column

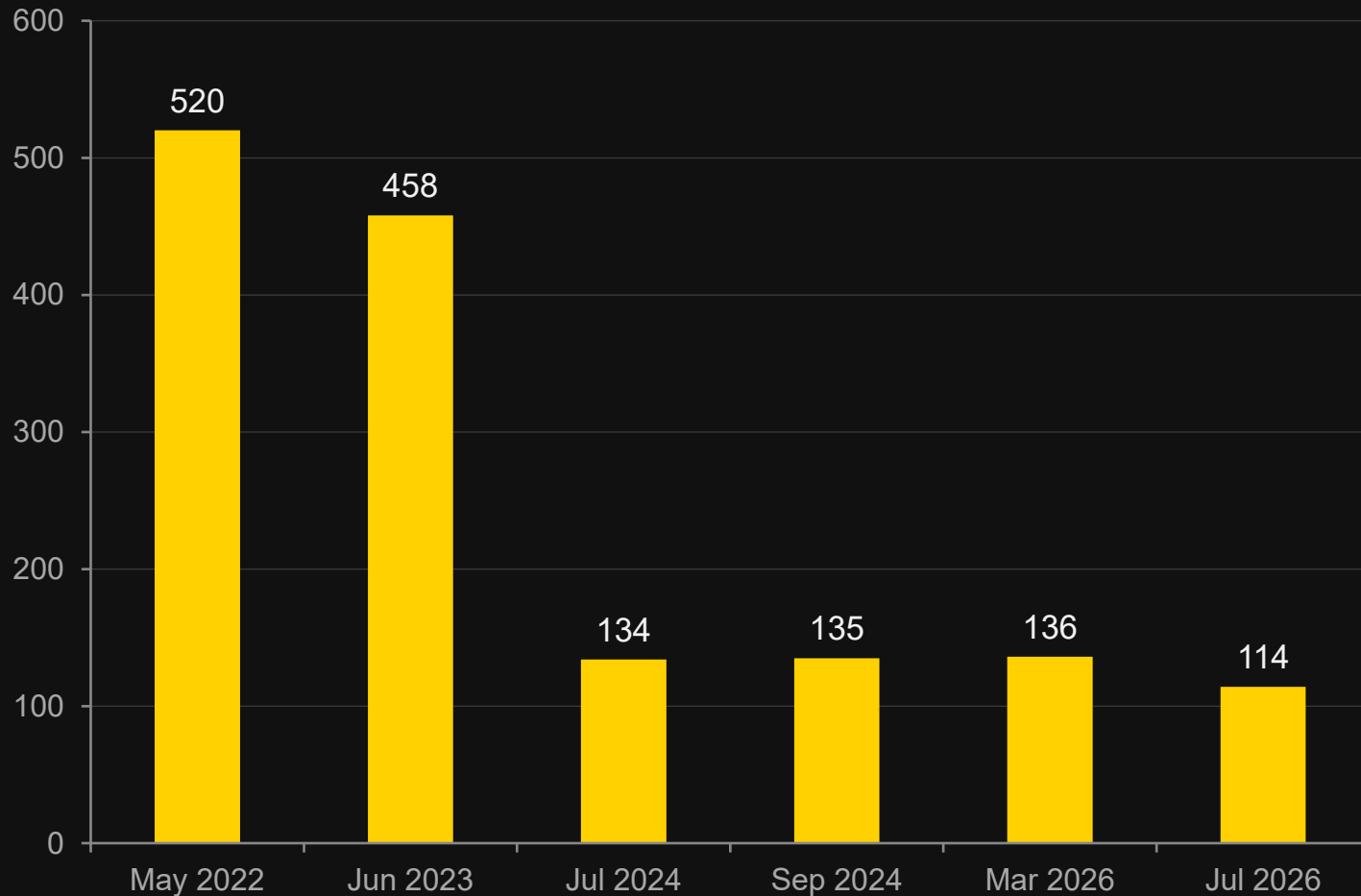
“

...our Board is moving into a strategic role, we need to be able to appoint professionals with the skill sets required for our future endeavors.

same column, on the new appointed director seat

[Wayback: caves.org/articles/may-2024-presidents-column-nss-restructuring/](https://caves.org/articles/may-2024-presidents-column-nss-restructuring/)

Acts printed as in force, edition by edition



330

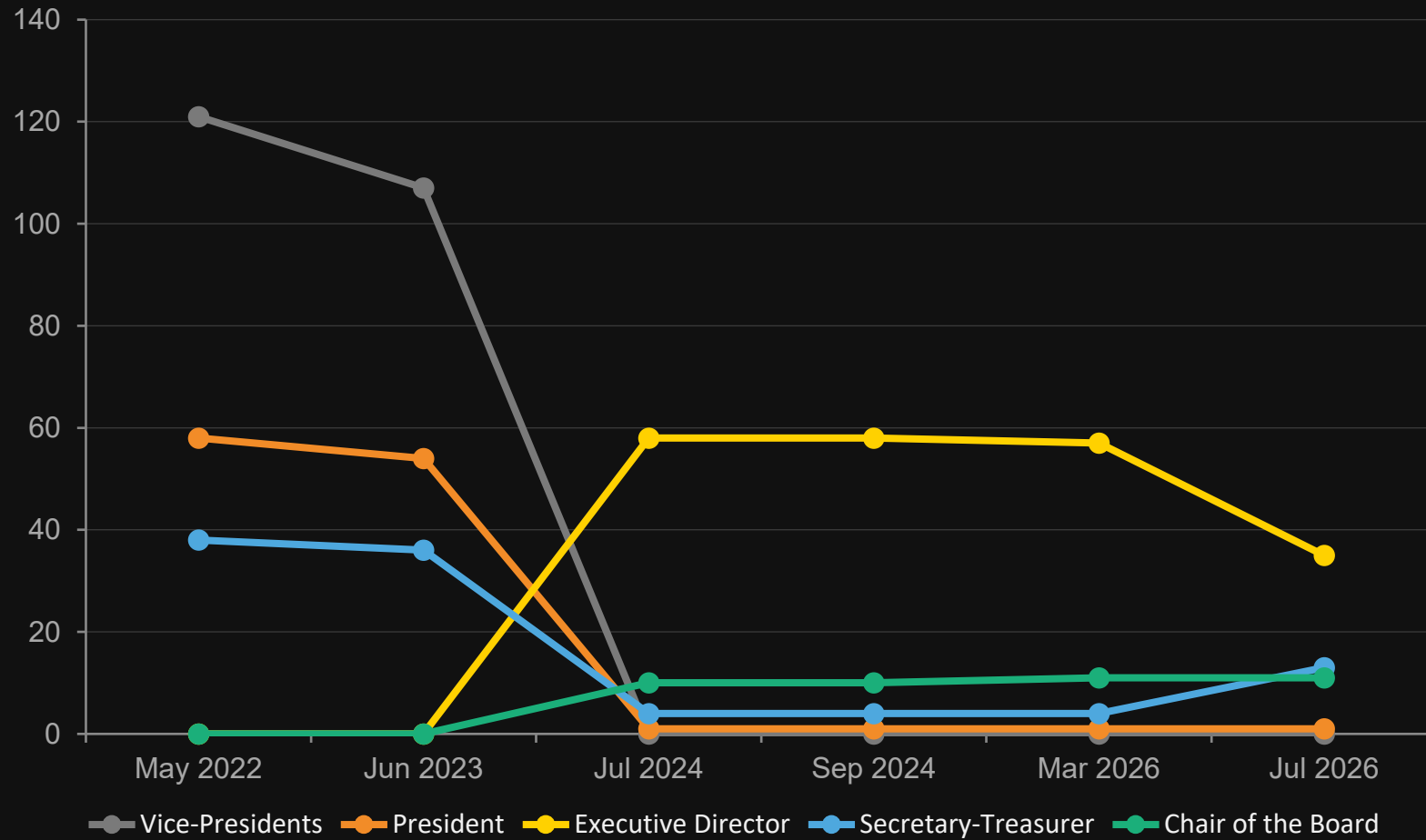
Acts in the June 2023 edition not in the July 2024 edition

6

Acts added in July 2024

Whole sections gone: 01 Officers, 09 Planning, 12 Executive Search, 24 Legal and 18 others. 26 Real Property: 53 → 3. 56 Convention: 48 → 11.

Which roles the Acts name



Role	Jun 2023	Jul 2024	Jul 2026
Vice-Presidents	107	0	0
President	54	1	1
Executive Director	0	58	35
Secretary-Treasurer	36	4	13
Chair of the Board	0	10	11

The Board of Governors, before and after

	Bylaws in May 2022	Bylaws from July 2024
Governing body	12 directors plus the 5 officers	12–15 directors: 3 elected each year, 1 appointed each year by the Board
Officers	President, EVP, AVP, OVP, Secretary-Treasurer	none — the Secretary-Treasurer is not mentioned
Who presides	the President (or the senior vice-president)	the Chair of the Board, elected by the directors
Directorate / Chair of the Directorate	yes — elects officers, appoints some chairs	no
Quorum	“Two thirds of the directors and three officers”	no quorum clause found in Art. V
Operations run by	the officers	the Executive Director; divisions and commissions report to the ED
Record of Acts kept by	the President	the Chair of the Board or designee
Removal clauses	officers and directors	directors only

The director's job, before and after

	June 2023	July 2026
Seats and votes	12 directors elected by the members, voting with 5 officers (17)	12–15 directors: 3 elected by the members and 1 appointed by the Board each year
Stated responsibilities	“the election of the officers”, “setting policies”, “reviewing and enacting the financial budget” (Sec. 9)	“long-term strategy and direction”, “Hiring of the Executive Director”, “Oversight of the operational components” (Bylaw V.A)
Who the directors choose	The five officers, every year; the Chair of the Directorate	The Chair of the Board, every year; one director a year; the Executive Director
Written position description	“Director Position Description”: 8 major responsibilities, 7 expectations (Sec. 9, 2011)	None in the Manual
Conduct expected	Nine expectations for directors, e.g. “To be open and accountable to the membership” (Sec. 9)	Code of Ethics for all officials (App. BR); conflict-of-interest disclosure and recusal (03-445)
Committee service	Active on an NSS committee within 12 months (02-949)	Active on a “board level” committee within 12 months (02-949)
Term limit	Two full terms in a row, then one term out	The same, plus six years in a row of any terms, then three years out; covers appointed seats (V.B.4.c)
Money	Attend meetings “at their own expense” (03-141)	Up to \$1,000 a year for travel (02-999); a share of a training budget (02-1002)
Removal	Hearing for cause; member recall; missed meetings	The same three routes (V.G)

Section 9 policies were written by the directors for themselves; the 2023 Manual says they “do not carry the weight of Board approval”. The whole section was left out of the Manual from July 2024.

PART 3

The Executive Director in the rulebook

What the Bylaws say about the new role, and what they leave out.



3

Bylaw VI, in full

VI. EXECUTIVE DIRECTOR

- A. The Executive Director is responsible for all operational components of the society.
- 1) The Executive Director is a full-time paid employee of the society.
 - 2) The Executive Director reports to the Board of Governors but is managed directly by the Chair of the Board. They are hired by the Board.
 - 3) Executive Director candidates are identified by the Nominating Committee. The use of a recruitment firm is encouraged. A sufficient number and quality of candidates must be presented.
 - 4) The final step in hiring is accomplished through board action requiring approval by a majority of board members.
 - 5) Executive Director compensation is set by the board.
 - 6) In periods of vacancy in the role of Executive Director, the chair of the board exercises the full authority and power of the executive director until such time as an executive director or interim executive director is seated.
 - 7) The sitting chair of the board cannot be considered for the position of executive director.

caves.org/wp-content/uploads/2026/09/Board-of-Governors-Manual-2026-07-06.pdf

	Hired by	the Board, majority vote (VI.A.4)
	Paid	compensation set by the Board (VI.A.5)
	Managed by	the Chair of the Board (VI.A.2; V.D.2)
	Term	not stated
	Evaluation	not stated
	Removal	not stated (directors: V.G)

What the search asked for

Yes, search criteria exist in public. They are in the search firm's position profile, not in the Bylaws, the Acts or the minutes.

Position profile, The Moran Company, Oct–Dec 2024

Required

- “Minimum of ten years of relevant management work or volunteer experience.”
- “Minimum of a Bachelor’s degree in a relevant field.”
- “Passion for the mission of NSS”
- “Demonstrated success in donor relations and fundraising for nonprofit organizations.”

Preferred

- “Nonprofit management experience is preferred, along with budgeting, accounting, financial and risk management expertise.”
- “An advanced degree is preferred.”
- “Previous Land Trust experience is a plus.” Familiarity with federal and state land management agencies.

Offered

- “Starting salary up to \$150,000, depending on experience”, with benefits; hybrid; 20–25% travel.

What the governing documents say

- Bylaw VI.A.3: candidates are identified by the Nominating Committee; “A sufficient number and quality of candidates must be presented.” No criteria.
- Appendix BU, “Personnel Job Descriptions”: no Executive Director entry in any edition.

What the minutes say

- 5 Jul 2024: the Board empowers the search committee to hire a search firm (13–0, 1 absent).
- 10 Feb 2025: “The Board is proceeding with an offer of employment”.
- No public minute records the Board approving the profile, the criteria, the hiring vote or the salary.

[Wayback: morancompany.com/executive-director-national-speleological-society/](https://www.morancompany.com/executive-director-national-speleological-society/)

Source: The Moran Company position profile “Executive Director, National Speleological Society” (Wayback 1 Nov 2024; tnnonprofits.org PDF, Oct 2024); minutes 5 Jul 2024 item 8.6; 10 Feb 2025; NSS announcement 17 Apr 2025; Bylaw VI.A.3; Manual Appendix BU; docs/research/2026-09-24_executive-director-role-documents.md

The vacancy clause: adopted 30 September 2024

“

In periods of vacancy in the role of Executive Director, the chair of the board exercises the full authority and power of the executive director until such time as an executive director or interim executive director is seated.

Bylaw VI.A.6

“

The sitting chair of the board cannot be considered for the position of executive director.

Bylaw VI.A.7

Minutes of 30 Sep 2024 (FINAL), item 4.6:

4.6 Gladieux Moves to add:

SG moves to add to bylaws section VI.A. 6) In periods of vacancy in the role of Executive Director, the chair of the board exercises the full authority and power of the executive director until such a time as an executive director or interim executive director is seated. 7) The sitting chair of the board cannot be considered for the position of executive director.

Johnson: seconds

Johnson: calls for roll call vote

Roll Call Vote:

14 Aye; 0 Nay; 0 Absent

caves.org/wp-content/uploads/p/boardminutes/2409BOG.pdf

The Manual's amendment note (p13):

VI. 6 and 7 added 10-30-24:4.6

Same item number, 4.6; the month is printed as October. 14 of 14 directors voted yes.

Eighteen years from first motion to contract termination

- 
- Aug 2008** Motion to hire an ED by 2009 fails; the executive committee is asked to define the role
 - Nov 2019** Act 12-951: ED Search Committee “to define the role and propose a funding source”
 - Mar 2024** Restructuring adopted, 16-0-1; ED search committee created
 - Jul 2024** Restructuring effective; officers retired
 - Sep 2024** Vacancy clause VI.A.6–7 added, roll call 14–0 (the Manual dates it 10-30-24)
 - Feb 2025** “The Board is proceeding with an offer of employment” — post-meeting note: Annette Engel accepts; start August 2025
 - 29 Jun 2026** Draft minutes: “The Board voted unanimously to terminate the Executive Director’s contract without cause.”
 - 6 & 10 Jul 2026** Draft minutes list “Executive Director Annette Engel - PRESENT” at both sessions
 - 17 Sep 2026** Kristine Ebrey reports as “Secretary-Treasurer and Interim Executive Director”

What is written down, role by role

Is it written down?	President '23	COD '23	S-T '23	S-T '26	Chair '26	ED '26
Role exists in the Bylaws	Yes	Yes	Yes	No	Yes	Yes
Eligibility stated	Yes	Yes	Yes	No	Yes	Yes
Qualifications stated	Partly	No	Partly	No	No	No 1
Search or vetting step	Yes	No	Yes	No	No	Yes
Term stated	Yes	No	Yes	No	Yes	No
Term limit	No	Partly 2	No	No	Partly 2	No
Reporting line stated	Yes	No 3	Yes	No	No	Yes
Evaluation process	No	No	No	No	No	No 1
Written job description	Yes	No	Yes	Partly 6	No	No
Authority over money	Yes	No	Yes	Yes	Yes	Yes
Authority to appoint people	Yes	Yes	No	No	Yes	Yes
Presides over the Board	Yes	No 7	No	No	Yes	No
Keeps the official record	Yes	No	Partly 4	No	Yes	Partly 5
Removal procedure	Yes	Partly 2	Yes	No	Partly 2	No
Vacancy rule	Yes	No	Yes	No	Yes	Yes

Notes

- 1 Appears only in recruiting and proposal documents the Board did not adopt as Acts or Bylaws.
- 2 Only through the person's director seat (director term limits; director removal, Bylaw V.G / IV.M).
- 3 "Official contact for the Directorate" (IV.C(1)); no reporting line stated.
- 4 Financial records only (Act 01-618).
- 5 Organizational chart only (Bylaw VII.A.2).
- 6 Appendix BU lists the heading "Secretary-Treasurer" with no text.
- 7 Presides over Directorate meetings only, not Board meetings (IV.C(1)).

Three top roles, the same questions

	President (June 2023)	Chair of the Board (July 2026)	Executive Director (July 2026)
Chosen by	The directors, each year, from a search-committee slate with résumés (IV.A(3); Act 12-551)	The sitting Board, each year, from its own members (V.D.1)	Nominating Committee identifies; majority Board vote; search firm required (VI.A.3–4; App. X)
Qualifications	“job qualifications for each office” referred to; none published (Act 12-551)	Not stated	Not stated — only in recruiting documents, not adopted
Term	One year; no limit (“Historically ... multiple one year terms”)	One year from 1 January; director term limits apply (V.D.1)	Not stated
Reports to / managed by	The directors (Sec. 9 policy)	Not stated	The Board; managed by the Chair (VI.A.2)
Evaluation	Not stated — annual re-election	Not stated	Not stated — proposed in 2020–23, never adopted
Written job description	Act 01-653, President Responsibilities	None — duties spread over Bylaws and Acts	None — Appendix BU has no ED entry
Removal	For cause with hearing; member recall; missed meetings (IV.M)	Only by removal as a director (V.G)	Not stated — contract ended “without cause”, 29 Jun 2026 (draft)
Vacancy	Senior vice-president acts (IV.A(3)(f))	New election “whenever a vacancy may occur” (V.D.1)	The Chair “exercises the full authority and power of the executive director” (VI.A.6)

Who may be Chair of the Board? The written rules, tested

Scenario: could this person be elected Chair of the Board?	Written rules	Why
A member aged 18 with no diploma, degree or management experience, serving as a director	Allowed	A member “18 years of age or older” may not be restricted from serving on the Board (II.B). The Chair is chosen from “all seated board members” (V.D.1). No qualifications are stated
A director in the first months of a first term	Allowed	No minimum time on the Board. The election is “prior to the end of the calendar year”; new directors are seated in the summer
A director appointed by the Board, not elected by the members	Allowed	“all seated board members” includes the appointed seats (V.B.2)
The same person, year after year	Allowed	Annual election with no limit on terms as Chair; only the director term limits apply (V.B.4.c)
A director with under one year left in their available terms	Unclear	Adopted: barred if “less than one (1) year remaining”. The Manual prints “one (1) year remaining”
A director who is also a paid direct report of the Executive Director	Not allowed	No one may be both “a director and ... a direct report to the Executive Director” (V.C)
A Chair who wants to become the Executive Director	Not allowed	“The sitting chair of the board cannot be considered for the position” (VI.A.7)

What the Chair then does

“directly manages the Executive Director” (V.D.2)
During a vacancy, “exercises the full authority and power of the executive director” (VI.A.6)

What was required of each

Executive Director (2024 search profile): ten years of management experience; a Bachelor’s degree, advanced degree preferred.

Chair of the Board (Bylaws and Acts): to be a seated director.

These are tests of the written rules, not descriptions of any person. The directors’ vote is the only filter.

Where the authorities went

	Before July 2024	July 2026 Manual
Money	President: emergency purchases to \$10,000; prepares budget with the officers. S-T: invests funds, signs on all accounts.	Chair: emergency purchases to \$10,000; approves director travel and training funds. ED: proposes the budget. S-T: opens/closes accounts, refuses over-budget payments (moved from the ED, July 2026 draft minutes).
People	President: appoints the Nominating Committee and discipline panels. Chair of the Directorate: fills officer vacancies temporarily.	Chair: manages the ED; appoints committee chairs, the Nominating Committee and discipline panels. ED: appoints division managers and commission chairs.
Board meetings	President presides and sets the agenda. The Directorate meets separately under its own chair.	Chair calls meetings and presides. No separate Directorate.
Records	President keeps the record of Acts; minutes carry Act numbers.	Chair keeps the record of Acts and sees the Manual updated “After meeting minutes are approved.”

Before 2024 these powers were spread across five officers and a separate Chair of the Directorate. From 2024 most sit with the Chair of the Board, who is also a voting director.

PART 4

July 2026: authority moves again

One consent agenda, one week after the termination vote.



4

One Act, three documents: signature authority

1 · Manual, March 2026

15-573 Signature Authority 07-27-07:34, 06-28-02, 03-16-96

The Executive Director may open and close bank and other financial institutions/accounts on behalf of the National Speleological Society Inc., consistent with the Acts of the Board and the budget approved by the

caves.org/wp-content/uploads/p/businessdocuments/Board_of_Governors_Manual.pdf

2 · Draft minutes, 6 July 2026, item 8.14 (DRAFT)

8.14. McNabb moves to update 15-573 Signature Authority 07-27-07:34, 06-28-02, 03-16-96

The <<Secretary/Treasurer>>>>Executive Director<< may open and close bank and other financial institutions/accounts on behalf of the National Speleological Society Inc., consistent with the Acts of the Board and the budget approved by the Board of

caves.org/wp-content/uploads/2026/08/2026.07.06_NSS-BoG-Special-Meeting-Minutes_Draft-1.pdf

3 · Manual, July 2026

15-573 Signature Authority 07-10-26:8.14, 07-27-07:34, 06-28-02, 03-16-96

The Secretary-Treasurer may open and close bank and other financial institutions/accounts on behalf of the National Speleological Society Inc., consistent with the Acts of the Board and the budget approved by

caves.org/wp-content/uploads/2026/09/Board-of-Governors-Manual-2026-07-06.pdf

How to read the minutes' markup

<<blue text>> is inserted

>>red text<< is deleted

Checked against the Manual: March 2026 reads “The Executive Director may open and close bank ... accounts.” July 2026 reads “The Secretary-Treasurer may open and close ...”.

Item 8.14 is one of 58 items listed under “Consent Agenda” (8.7–8.64). The minutes record one second (Arpin) and one unanimous voice vote, placed after item 8.64.

Nine fiscal Acts moved from the ED to the Secretary-Treasurer

Act	Title	What the Secretary-Treasurer now does (July 2026 Manual)
15-017	Negotiable Funds	receives checks and other negotiable instruments
15-020	Bonding	is responsible for bonding employees and convention treasurers
15-428	Securities	may open brokerage accounts and sell donated securities
15-495	Tax ID Reporting	receives monthly income/expense reports from divisions
15-509	Review of Checking Accounts	gives the Financial Review Committee access to bank accounts
15-573	Signature Authority	may open and close bank and financial accounts
15-776	Financial Report	prepares the financial report
16-040	Budget Restrictions	refuses payment of amounts over budget
18-686	NSS Reserve Fund	notifies the Board of reserve-fund transfers

Also: 15-617 capital-purchase threshold \$500 → \$1,500, and the ED approval tier removed · 15-885 facility surpluses decided by the Facilities Division, not the ED.

Twenty-two fund Acts deleted; the Holding Fund Act returns

22

Acts deleted from Sections 17–18 (funds)

10

remaining fund Acts now say “part of the Holding Fund”

Deleted include: Cave Acquisition Fund · Nature Preserve Fund · NSS Perpetuity Operational Fund · Capital Expenses Fund (created Mar 2025) · Publication Fund · James G. Mitchell Fund · National Cave Rescue Commission Funds · Fund for Litigation to Protect Caves

Act 18-540 in the July 2026 Manual:

18-540 Holding Fund 11-06-93

A Holding Fund, designated as Attachment M, is established with the National Speleological Foundation for the purpose of managing excess cash funds on an ongoing short-term basis.

caves.org/wp-content/uploads/2026/09/Board-of-Governors-Manual-2026-07-06.pdf

The fund

- Attachment M of the NSS–NSF trust funds contract: money the Society “does not require in the near term”, held and invested by the Foundation.
- It kept operating: balances of \$148,000–\$201,000 in the 2017–18 S-T reports; “\$158,000 surplus... in the holding fund” (Finance report, Oct 2025).
- Minutes, 5 Jul 2024, item 8.5: Attachment M’s language replaced, roll call 13–0.

The Act, 18-540

- Printed among repealed Acts in 2022–23 (“closed 10-23-99:13”); absent from the 2024 to March 2026 editions.
- Back in July 2026, annotated only “11-06-93”, with new words: “designated as Attachment M”. “18-540” is in no public 2026 minutes.
- The July motions say “reference NSF NSS Appendix BV”; the Manual prints “Attachment M”.

PART 5

The Manual and the minutes

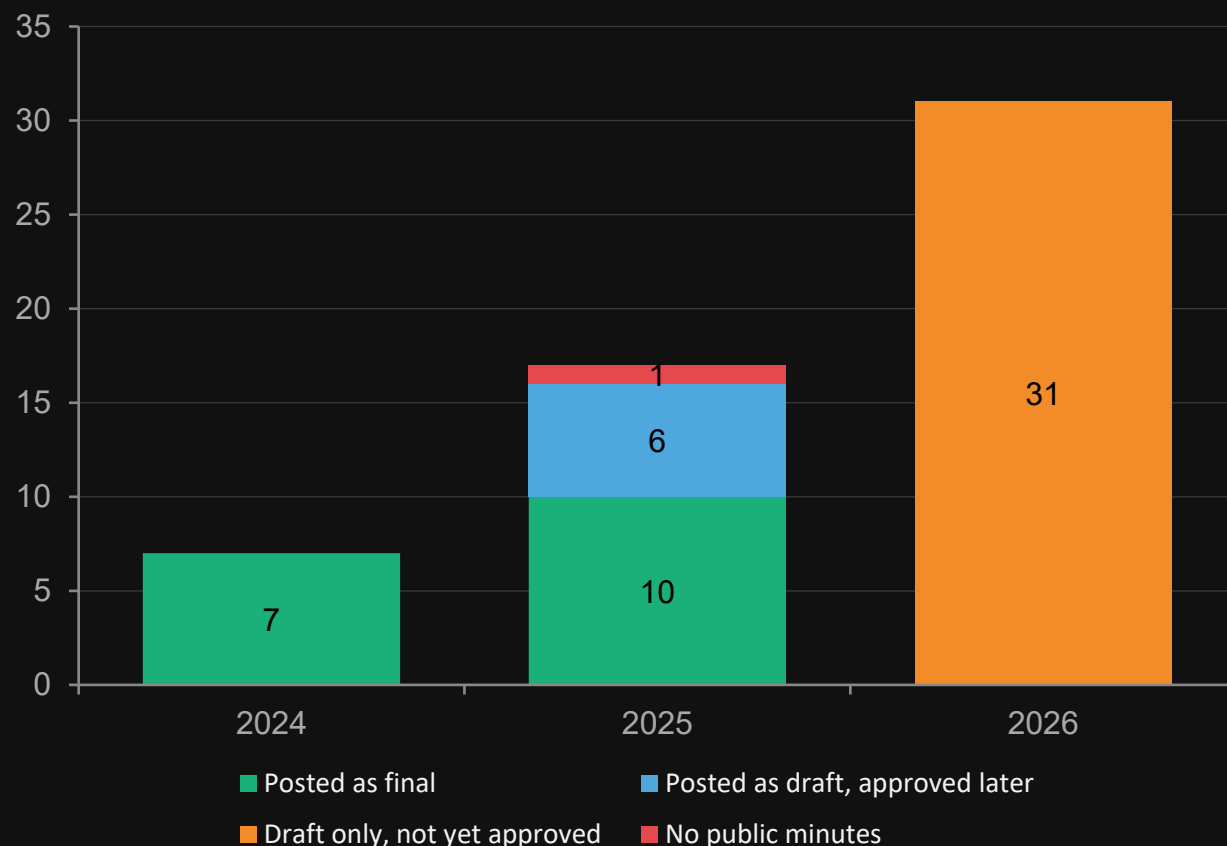
Does the rulebook match the decisions that produced it?



5

Every 2024–2026 change, traced to its minutes

55 adoption annotations, by year of the meeting cited



Act 05-774, as printed in the July 2026 Manual:

05-774 Board of Governors Manual Proofing 03-25-06:24d

After meeting minutes are approved, the Chair of the Board ensures that Secretary to the Board makes any additions, changes, and/or deletions therein approved to the Constitution, Bylaws, and Acts (and appendices) of the Board of Governors manual.

The July 2026 edition

- Titled “As of the July 06, 2026 meeting”, posted 12 Sep 2026.
- All 31 of its new annotations cite that meeting.
- Only draft minutes of that meeting are public (checked 30 Sep 2026).
- The annotations read “07-10-26”; the items were taken in the session called to order on 6 July.

Where the Manual does not match the text adopted

Adopted (draft minutes, item 8.32)

8.32. McNabb moves to update 18-367 Save-the-Caves Fund 03-17-07:20, 03-23-02, 04-07-01, 03-27-99, 06-23-97, 11-21-81, 11-17-79

The >>Save-the-Caves<< fund shall be used to support the general conservation goals of the Society. >>This fund was established by donors.<< >>Money may be expended by Board action on the recommendation of the Conservation Department and Executive Director. In addition, the Executive Director may authorize the expenditure of up to 5.5% of the beginning value of the Save-the-Caves Fund in any fiscal year for the reprinting of NSS brochures, which promote the conservation goals of the Society.<< <<This fund is part of the Holding Fund that is managed by the National Speleological Foundation reference NSF NSS Appendix BV>>

Printed (July 2026 Manual)

18-367 Save-the-Caves Fund 07-10-26:8.32, 03-17-07:20, 03-23-02, 04-07-01, 03-27-99, 06-23-97, 11-21-81, 11-17-79
The fund shall be used to support the general conservation goals of the Society. This fund is part of the Holding Fund that is managed by the National Speleological Foundation reference NSF NSS Attachment M.

caves.org/wp-content/uploads/2026/09/Board-of-Governors-Manual-2026-07-06.pdf

caves.org/wp-content/uploads/2026/08/2026.07.06_NSS-BoG-Special-Meeting-Minutes_Draft-1.pdf

Result of comparing 57 motions that set out Act text	Motions
Manual matches the minutes (exactly, as deletions, or apart from text-extraction artefacts)	44
“Appendix BV” adopted, “Attachment M” printed (10 fund Acts)	10
15-885: “Facilities Division Chair” adopted, “Chief” printed	1
Matches as amended on the floor (03-445, 1 Mar 2025)	1
18-639: July 2026 motion amends an Act already rescinded on 1 Mar 2025	1

What this review cannot tell you

-  **Why**

The minutes rarely record reasons. Except for the May 2024 column, this talk does not attribute reasons to anyone.
-  **Member-only records**

NSS News and election notices were not examined. A Constitution ballot, if held, would be recorded there.
-  **Missing minutes**

No public minutes for 16 Nov 2024 or 16 Nov 2025, and no approved minutes of 6/10 Jul 2026 (as of 30 Sep 2026).
-  **Missing editions**

No public Manual 2012 – May 2022, and most post-2024 editions are not public. Older editions sit behind a login.
-  **Automated reading**

Acts were split from the Manuals by a program. Counts were checked against the Manual's own checklist; every quotation and every difference shown was checked by hand.

Questions the public record leaves open

1

The Manual prints new wording for Article III, and the public record shows neither a member ballot nor any other authority for the change. Was this change made in accordance with the Constitution?

5

Should the Bylaws define the Executive Director's term, evaluation and removal, as they do for directors?

2

Was the 12 May 2025 amendment to Bylaw V.B.4(c), with 9 of 13 directors present, adopted under Article XIV? Where are the minutes of 16 November 2025?

6

Should the Bylaws name the Secretary-Treasurer, now assigned duties in 13 Acts?

3

Should the Manual be updated from draft minutes, given Act 05-774 ("After meeting minutes are approved")?

7

Could every edition of the Manual be kept publicly available, as the record of Acts "made available to at least all members" (Bylaw V.F.2)?

4

Which text of the ten fund Acts is authoritative, "Appendix BV" (minutes) or "Attachment M" (Manual)?

8

Should the Manual's notes be corrected where they differ from the minutes (10-30-24 for 30 Sep 2024; "one (1) year" for "less than one (1) year" in V.D.1)?

Role matrix 1/6 — before July 2024 and the Secretary-Treasurer: eligibility and selection

	President · Jun 2023	Chair of the Directorate · Jun 2023	Secretary-Treasurer · Jun 2023	Secretary-Treasurer · Jul 2026
Appointing authority	The Board appoints officers; electing officers is Directorate business Const. Art. III p10 · IV.C(2) p13	Elected by the directors from among themselves IV.C(1) p13	An officer, appointed by the Board / elected by the directors Const. Art. III p10	Not stated (N3)
Eligibility	Any member in good standing, 18 or older I.B p11	A sitting director IV.C(1) p13	Any member in good standing, 18 or older I.B p11	Not stated (N3)
Incompatible positions	Cannot also be a director IV.B p13	Not an officer IV.C(1) p13	Cannot also be a director IV.B p13	Not stated (N3)
Qualifications (skills, education, experience)	Search committee to match candidates to written “job qualifications”; none found published Act 12-551 p37	Not stated (N1)	As for the President (Act 12-551); none published Act 12-551 p37	Not stated (N3)
Chosen by / how	Elected each fall by the directors as President-elect IV.A(3)(a) p12	Nominated and elected in the Directorate’s closed session at the summer meeting IV.C(1) p13	Elected each fall by the directors as S-T-elect IV.A(3)(c) p12	Not stated (N3) S-T/Interim ED report, 17 Sep 2026 p1
Search or vetting step	Executive Search Committee solicits nominations; candidates submit résumés; slate 30 days ahead IV.A(3)(d) p13 · Act 12-551 p37	Not stated (N1)	Executive Search Committee solicits nominations IV.A(3)(d) p13	Not stated (N3)

Role matrix 2/6 — before July 2024 and the Secretary-Treasurer: term, reporting and duties

	President · Jun 2023	Chair of the Directorate · Jun 2023	Secretary-Treasurer · Jun 2023	Secretary-Treasurer · Jul 2026
Term length / when seated	One year, spring meeting to spring meeting IV.A(3)(a) p12	Not stated (N1)	One year IV.A(3)(c) p13	Not stated (N3)
Term limits	Not stated Sec. 9 policy (Directors) p587	Not stated (N1) IV.A(2)(a) p12	Not stated (N1)	Not stated (N3)
Reports to / managed by	Responsible to the directors Sec. 9 policy (Directors) p586	Official contact for the Directorate IV.C(1) p13	Responsible to the directors Sec. 9 policy (Directors) p586	Not stated (N3)
Evaluation	Not stated (N1)	Not stated (N1)	Not stated (N1)	Not stated (N3)
Written job description	Act 01-653, President Responsibilities Act 01-653 p24	Not stated (N1)	Act 01-618, Secretary-Treasurer Responsibilities Act 01-618 p23	Not stated Appendix BU p60
Main duties	Managing the Society's business, fundraising, membership retention, outreach; agenda and meetings Act 01-653 p24	Presides over the Directorate; reports its closed-session actions; directors' annual report IV.C(1) p13 · IV.C(3) p13 · Act 02-948 p26	Chief financial and record-keeping officer Act 01-618 p23	Named in 13 Acts; 9 fiscal duties moved from the ED in July 2026 (draft minutes) Act 15-573 p19 · Act 16-040 p20

Role matrix 3/6 — before July 2024 and the Secretary-Treasurer: authority, removal and vacancy

	President · Jun 2023	Chair of the Directorate · Jun 2023	Secretary-Treasurer · Jun 2023	Secretary-Treasurer · Jul 2026
Authority over money	Emergency capital purchases up to \$10,000; helps prepare the budget Act 15-617 p39 · Act 01-653 p24	Not stated (N1)	Invests NSS funds; signature authority on all accounts (with a second signer) Act 01-618 p23	Opens/closes accounts; refuses over-budget payments; notified of reserve transfers Act 15-573 p19 · Act 18-686 p22
Authority over people	Appoints the Nominating Committee (Board approves); appoints discipline panels IV.A(2)(a) p12 · Act 10-253 p35	Temporarily fills vice-president and S-T vacancies, with Directorate consent IV.A(3)(g) p13	Not stated (N1)	Not stated (N3)
Authority over Board meetings	Presides; responsible for the agenda IV.D(1) p13 · Act 01-653 p24	Presides over Directorate meetings (not Board meetings) IV.C(1) p13	Not stated (N1)	Not stated (N3)
Authority over records	Keeps the record of Acts; minutes carry Act numbers IV.K p14 · Act 05-771 p30	Not stated (N1)	Chief record-keeping officer (financial) Act 01-618 p23	Not stated (N3)
Removal	For cause with hearing; member recall (3% petition); attendance (2/3 Board vote) IV.M(1) p14 · IV.M(2) p14 · IV.M(3) p14	Only as a director (IV.M) IV.M(1) p14	As for all officers: for cause, recall, attendance IV.M(1) p14	Not stated (N3)
Vacancy: who acts	Senior vice-president acts IV.A(3)(f) p13	Not stated (N1)	Chair of the Directorate appoints temporarily IV.A(3)(g) p13	Not stated (N3)

Role matrix 4/6 — Chair of the Board and Executive Director: eligibility and selection

	Chair of the Board · Jul 2024	Chair of the Board · Jul 2026	Executive Director · Jul 2024	Executive Director · Jul 2026	ED — recruiting & proposal documents · 2020–2024 (NOT ADOPTED)
Appointing authority	Elected by the directors from among themselves V.D p9	Elected by the directors from among themselves V.D p9	Appointed and hired by the Board; pay set by the Board Const. Art. III p6 · V.A.2 p8 · VI.A.2 p10 · VI.A.5 p10	Appointed and hired by the Board; pay set by the Board Const. Art. III p6 · V.A.2 p8 · VI.A.2 p11 · VI.A.5 p11	Hired by the Board, employed at its discretion The Case for an ED (draft, 2023) p7
Eligibility	A sitting director V.D p9	A sitting director with more than one year left in their term limit V.D.1 p9 · V.D.1 p9	A full-time paid employee VI.A.1 p10	A full-time paid employee VI.A.1 p11	—
Incompatible positions	Not stated (N2)	Cannot be considered for Executive Director VI.A.7 p11	No director may be a direct report to the ED V.C p9	No director may be a direct report to the ED; the sitting Chair is ineligible V.C p9 · VI.A.7 p11	—
Qualifications (skills, education, experience)	Not stated (N2)	Not stated (N3)	Not stated (N2)	Not stated (N3)	10+ years' management/volunteer experience; bachelor's degree (advanced/MBA preferred) Moran Co. profile (Nov 2024) p1 · Moran Co. profile (Nov 2024) p1 · Interim ED description (May 2024) p2
Chosen by / how	Elected by the Board V.D p9	Elected annually by the sitting Board before year-end (added June 2025) V.D.1 p9 · Minutes Oct 2025 p2	Candidates identified by the Nominating Committee; hired by majority Board vote VI.A.3 p10 · VI.A.4 p10	Candidates identified by the Nominating Committee; hired by majority Board vote VI.A.3 p11 · VI.A.4 p11	—
Search or vetting step	Not stated (N2)	Not stated (N3)	Recruitment firm encouraged; third-party search firm required on a vacancy VI.A.3 p10 · Appendix X §II p46	Nominating Committee oversees a recruiting firm; third-party firm required VII.E.3 p11 · Appendix X §II p45	—

Role matrix 5/6 — Chair of the Board and Executive Director: term, reporting and duties

	Chair of the Board · Jul 2024	Chair of the Board · Jul 2026	Executive Director · Jul 2024	Executive Director · Jul 2026	ED — recruiting & proposal documents · 2020–2024 (NOT ADOPTED)
Term length / when seated	Not stated (N2)	One year, seated 1 January V.D.1 p9	Not stated (N2)	Not stated (N3)	—
Term limits	Not stated (N2) V.B.4(c) p9	Not stated (N3) V.B.4(c) p9	Not stated (N2)	Not stated (N3)	—
Reports to / managed by	Not stated (N2)	Not stated (N3)	Reports to the Board; managed by the Chair VI.A.2 p10	Reports to the Board; managed by the Chair VI.A.2 p11	Interim ED: reports to the Board, specifically the Chair Interim ED description (May 2024) p1
Evaluation	Not stated (N2)	Not stated (N3)	Not stated (N2)	Not stated (N3) Draft minutes 13 Apr 2026 p2	Job description, performance goals, annual evaluation; performance metrics tied to a strategic plan The Case for an ED (draft, 2023) p7 · Exploratory Committee report p1 · Exploratory Committee report p1
Written job description	Not stated (N2)	Not stated (N3)	Not stated (N2)	Not stated (N3)	Exploratory Committee: “Define the specific Executive Director job description” Exploratory Committee report p1
Main duties	Presides; directly manages the ED V.D.1 p9	Presides; directly manages the ED; directors’ annual report V.D.2 p9 · Act 02-948 p15	All operational components; proposes the annual budget VI.A p10 · VI.B p10	All operational components; proposes the annual budget VI.A p11 · VI.B p11	—

Role matrix 6/6 — Chair of the Board and Executive Director: authority, removal and vacancy

	Chair of the Board · Jul 2024	Chair of the Board · Jul 2026	Executive Director · Jul 2024	Executive Director · Jul 2026	ED — recruiting & proposal documents · 2020–2024 (NOT ADOPTED)
Authority over money	Emergency capital purchases up to \$10,000 Act 15-617 p18	Emergency capital purchases up to \$10,000; approves director travel and training funds Act 15-617 p19 · Act 02-999 p15 · Act 02-1002 p15	Proposes the budget; opens and closes accounts VI.B p10 · Act 15-573 p18	Proposes the budget; signature authority kept, but account opening moved to the S-T (draft minutes) VI.B p11 · Act 15-573 p19	—
Authority over people	Directly manages the ED; appoints committee chairs and the Nominating Committee (Board confirms) V.D.1 p9 · VII.E.2 p11 · V.B.4 p8	Directly manages the ED; appoints committee chairs, Nominating Committee and discipline panels V.D.2 p9 · VII.E.2 p11 · Act 10-253 p18	Appoints division managers and commission chairs (Board approves commissions) VII.D.1 p11 · VII.C.1 p11	Appoints division managers and commission chairs (Board approves commissions) VII.D.1 p11 · VII.C.1 p11	—
Authority over Board meetings	Calls meetings and presides V.E.2 p9	Calls meetings and presides V.E.2 p9	Not stated (N2)	Not stated (N3)	—
Authority over records	Keeps the record of Acts V.F.2 p10	Keeps the record of Acts; minutes and Manual updates V.F.2 p10 · Act 05-774 p17	Maintains the organizational chart VII.A.2 p11	Maintains the organizational chart VII.A.2 p11	—
Removal	Only as a director (V.G); no removal from the chair alone V.G.1 p10	Only as a director (V.G); no removal from the chair alone V.G.1 p10	Not stated (N2)	Not stated (N3) Draft minutes 29 Jun 2026 p3	“can be let go for underperformance” The Case for an ED (draft, 2023) p7
Vacancy: who acts	Not stated (N2)	New election whenever a vacancy occurs; the COB also acts for a vacant ED V.D.1 p9 · VI.A.6 p11	Not stated (N2)	The Chair of the Board exercises the ED’s full authority (added 30 Sep 2024, item 4.6, roll call 14-0; the Manual dates it 10-30-24) VI.A.6 p11	—

Sources — Board Manual editions and governing documents

Manual, as of 30 May 2022 (572 pp)	https://caves.org/wp-content/uploads/2022/06/Board_of_Governors_Manual.pdf
Manual, as of 20 June 2023 (590 pp) — Internet Archive 19 Oct 2023	https://web.archive.org/web/20231019112853id_/https://caves.org/wp-content/uploads/p/businessdocuments/Board_of_Governors_Manual.pdf
Manual, as of July 1st 2024 (65 pp)	https://caves.org/wp-content/uploads/2024/07/Board-of-Governors-Manual-2024-7-1_0.0.pdf
Manual, as of the Sept 30 2024 meeting (67 pp) — Internet Archive 16 Sep 2025	https://web.archive.org/web/20250916214603id_/https://caves.org/wp-content/uploads/p/businessdocuments/Board_of_Governors_Manual.pdf
Manual, as of the March 14 2026 meeting (66 pp)	https://caves.org/wp-content/uploads/p/businessdocuments/Board_of_Governors_Manual.pdf
Manual, as of the July 06 2026 meeting (63 pp)	https://caves.org/wp-content/uploads/2026/09/Board-of-Governors-Manual-2026-07-06.pdf
NSS Restructuring Proposal_2024-2-7	https://caves.org/wp-content/uploads/2024/02/NSS-Restructuring-Proposal_2024-2-7.pdf
May 2024 President's Column: NSS Restructuring — Internet Archive 17 Jul 2024	https://web.archive.org/web/20240717135810/https://caves.org/articles/may-2024-presidents-column-nss-restructuring/
Secretary-Treasurer and Interim Executive Director Report, 17 Sep 2026	https://caves.org/wp-content/uploads/2026/09/S-T-and-Interim-ED-Report-9.17.2026.pdf

Sources — minutes and agendas cited

Minutes, 10 Mar 2024 (restructuring, item 5.5)

<https://caves.org/wp-content/uploads/p/boardminutes/2403BOG.pdf>

Restructuring proposal, 2024-2-7 (adopted as Act 01-994)

https://caves.org/wp-content/uploads/2024/02/NSS-Restructuring-Proposal_2024-2-7.pdf

Special meeting, 30 Sep 2024 — final (Bylaw VI.A.6–7, item 4.6)

<https://caves.org/wp-content/uploads/p/boardminutes/2409BOG.pdf>

Special meeting, 10 Feb 2025 (Bylaws V.B.4(c), XIII.C; ED offer)

<https://caves.org/wp-content/uploads/p/boardminutes/2502BOG.pdf>

Minutes, 1 Mar 2025 — final (03-445, 18-639, 18-741, 18-998)

<https://caves.org/wp-content/uploads/2026/04/2025.03.01-NSS-BOG-Meeting-Minutes-Final.v.2docx.docx.pdf>

Special meeting, 12 May 2025 — Draft 1 (Bylaw V.B.4(c); 9 of 13 present)

https://caves.org/wp-content/uploads/p/boardminutes/2505BOG_Special.docx

Agenda, 12 May 2025 special meeting (uploaded 14 Apr 2025)

https://caves.org/wp-content/uploads/p/boardagendas/2505_BOG_Agenda_Special.pdf

Meeting of 23 & 27 Jun 2025 — Draft 2 (Bylaw V.D.1, item 6.4)

<https://caves.org/wp-content/uploads/p/boardminutes/2506BOG.pdf>

Minutes, 4 Oct 2025 — Draft 2 (Bylaws III.G, V.B.4(d); 56-624)

<https://caves.org/wp-content/uploads/p/boardminutes/2510BOG.pdf>

Agenda, Nov 2024 (proposed rescission of 18-687) — no public minutes

https://caves.org/wp-content/uploads/p/boardagendas/202411BOG_Agenda.pdf

Special meeting, 29 Jun 2026 — DRAFT minutes (ED contract)

https://caves.org/wp-content/uploads/2026/08/2026.06.29_NSS-BoG-Special-Meeting-Minutes_Draft-1.pdf

Regular meeting, 6 & 10 Jul 2026 — DRAFT minutes (PDF)

https://caves.org/wp-content/uploads/2026/08/2026.07.06_NSS-BoG-Special-Meeting-Minutes_Draft-1.pdf

Regular meeting, 6 & 10 Jul 2026 — DRAFT minutes (DOCX)

https://caves.org/wp-content/uploads/2026/08/2026.07.06_NSS-BoG-Meeting-Minutes_Draft-1.docx

Repository files: docs/research/2026-09-30_bog-manual-acts-bylaws_findings.md · analysis/out/*.csv · analysis/*.py · crawler/gapfill.py

Method details for the Act-level comparison

Splitting the Manual into Acts. An Act starts at a line “NN-NNN Title date(s)”. 2022/2023: Section 3 only (Acts in force); Section 7 (repealed/obsolete) excluded. 2024+: from Section 02 to the first appendix. Checked against Appendix A “Check List of the Acts” (517 of 520 matched).

Comparing editions. Consecutive editions compared by Act number: added, dropped, amended (new annotation), text changed (same annotation). “Dropped” means the number is absent from the later edition.

Annotations vs minutes. Each “MM-DD-YY:item” dated 2024 or later matched to public minutes of that date (or month, where the file is dated by month).

Adopted vs printed text. Minutes markup applied left to right (<<inserted>> kept, >>deleted<< removed), then compared word by word with the next edition. Every difference on the slides was read against the original PDF; hand-checked cases are listed in manual_review_overrides.csv.

ADDENDUM · ADDED 5 OCTOBER 2026

Corrections and clarifications

Slides 1–50 are shown exactly as presented on 1 October 2026, so they match the recording. An orange marker on a slide points to an item here.

- | | | |
|---|--|---|
| <p>A Corrections to the slides</p> <p>Where a slide or its speaker notes said something the record does not support.</p> | <p>B Corrections to what was said</p> <p>Slips made while presenting on 1 October. The slides were right.</p> | <p>C Clarifications and additions</p> <p>Answers to questions raised on the call, and records found since.</p> |
|---|--|---|

The deck as presented is kept unchanged as NSS_BOG_Acts_Bylaws_Manuals_2026-10-01_as_presented.pptx (SHA-256 7cd069d1c52a...e72c2dc79). Nothing in slides 1–50 of this file differs from it except the orange markers and a dated line at the top of the speaker notes.

Corrections to the slides

	Slide	As shown	Correction	Source
A1	4	Bylaws are “Amended by the Board (two-thirds)”; notes: “The Board can amend them with a two-thirds vote.”	Incomplete. The Board amends the Bylaws by a unanimous vote with three-quarters present, or by two-thirds of those present after written notice a meeting or a month ahead (slides 7–8 have this right).	Bylaws Art. XIV
A2	15	“The Constitution and Bylaws kept their length (9 → 8 pages)”	Those are combined counts. The Constitution is one page in both editions. The Bylaws went from eight pages to seven.	June 2023 Manual pp10–18
A3	16	Notes: “The public minutes of that June 2023 convention meeting do not mention the review.”	Wrong. The minutes of 26 June 2023 record item 11, “NSS Restructuring Proposal Review and Discussion”, from 10:38 AM to adjournment at 3:52 PM, with a recess. They record no content or vote under it.	Minutes 26 Jun 2023
A4	25	Notes: Appendix BU is “required by an Act of January 2023”	Act 40-988 (Jan 2023) created Appendix BU, but that Act was itself dropped in July 2024. The appendix remains, with only the headings “Secretary-Treasurer” and “Staff”, in all four editions since.	July 2026 Manual, App. BU
A5	25	Notes: “hired by a majority of the Board”; the 2023 proposal quoted without qualification	The Bylaw says “approval by a majority of board members”, which is all members, not only those present. The 2023 proposal, “The Case for an Executive Director”, is marked DRAFT.	Bylaw VI.A.4

Corrections to what was said on 1 October

	Slide	What I said	What the record says
B1	3	The confirmation check was “October 30th”; the July 2026 Manual was posted “the 16th of September, and again the 23rd”	The re-check was on 30 September 2026. The July 2026 Manual was uploaded on 12 September 2026; the checks on 23 and 30 September found the same file.
B2	2	The SHA-256 is “kind of like a blockchain”	It is a fingerprint of one file: if the file changes, the fingerprint changes. It is not a blockchain.
B3	5	The amendment record reads “June 1972. Article 11, 2014”	It reads “June 1972” and “Article IX: 07/14/14:4”. The Constitution has nine articles.
B4	6	The Article III change is “pretty much in violation of our own constitution”	The slide asks a question and states no finding. Whether a member ballot was held is not known from the public record. What Alabama law requires is not something this review has established.
B5	15	“There were 224 appendices”	224 is the number of appendix pages in the June 2023 Manual. It had 63 appendices; 15 remain in July 2024.
B6	18	The restructuring vote was 16 in favour, none against, “one abstention”	One absent. The roll call is 16 Aye, 0 Nay, 1 Absent.
B7	23	The conflict-of-interest Act “was extended to March 2025”	It was extended in March 2025 (1 Mar 2025, item 6.7) to cover the Executive Director and Division Heads.

Clarifications and additions since the call

	Slide	Question or point	What the public record shows	Source
C1	5	Why does the Manual print the 1941 DC Articles of Incorporation, and is the Constitution the same thing as the Articles?	They are separate documents. In 2014 the members amended Article IX by ballot (1,839 to 135) so the Society could move its incorporation from DC to Alabama. The Bylaws now refer to “the statutes of the state of Alabama”. Every Manual to July 2026 still prints only the 1941 DC certificate; no Alabama filing is printed.	Minutes 14 Jul 2014
C2	38, 40	Have the July 2026 minutes been approved?	The agenda of the 14 Sep 2026 special meeting lists the 29 June and 6 July minutes under “Minutes to Approve”, two days after the July 2026 Manual was posted. No minutes of 14 Sep are public, so no approved July minutes are public.	Agenda 14 Sep 2026
C3	41	A question raised in discussion	Should the Bylaws set minimum qualifications for directors and for the Chair of the Board, as the 2024 search profile did for the Executive Director?	Slides 26, 31
C4	28	Is a new Executive Director search under way?	The 14 Sep 2026 agenda has the item “Schultz moves to approve \$55,000 for recruiting costs to source a new Executive Director.” Only the agenda is public, not the vote. The 17 Oct 2026 agenda proposes extending the conflict-of-interest Act to the Secretary-Treasurer.	Agenda 17 Oct 2026
C5	6	Could the ballot have been announced by NSS email?	Member emails, NSS News and election notices were not examined. On the call no one recalled a ballot; that is recollection, not record.	—
C6	15	Why were the reference lists taken out?	June 2023: the Secretary to the Board reported that the Manual “contains many pages related to the history of the society” that “should be maintained by the appropriate committee and posted to the website”.	President’s report, Jun 2023